

Constitution of the Engineering Graduate Student Council at the University of Utah

Adopted 19 August 2025

The Engineering Graduate Student Council at the University of Utah, incorporated under the Utah Revised Nonprofit Corporation Act, is organized exclusively for charitable, educational, and scientific purposes, including, for such purposes, the making of distributions to organizations that qualify as exempt organizations under section 501(c)(3) of the Internal Revenue Code, or the corresponding section of any future federal tax code. As the members of the organization, we adopt this constitution as the bylaws for the regulation of its internal affairs, inasmuch as they are consistent with its Articles of Incorporation and applicable law:

Article I. General Provisions

Section 1. Mission and specific purpose. The organization's mission is to advance graduate engineering education at the University of Utah. This includes:

- a. Fostering a collaborative and supportive academic and research environment;
- b. Strengthening graduate programs in the Price College of Engineering; and
- c. Otherwise promoting the success, well-being, and scholarly and professional development of engineering graduate students.

Section 2. Governing bodies. The organization is governed by (a) the General Assembly of its members (the Assembly) and (b) by the Executive Board (the Board).

Section 3. Powers of the Assembly. The Assembly shall have sole authority to amend the Articles of Incorporation in a way that impacts the rights of members and to amend the constitution. The Assembly shall also have sole authority over the following business, which it shall exercise only for the impartial benefit of the community of its members while upholding the integrity of the organization and advancing its mission:

- a. Adopting rules of order to govern the Assembly's business meetings;
- b. Electing and removing officers, directors, and advisors;
- c. Establishing and dissolving programs and standing committees;
- d. Adopting general appropriations of the assets and funds of the organization;
- e. Authorizing merger, dissolution, or formal affiliation with an external organization; and
- f. Serving as the final appellate authority on constitutional interpretation and in disciplinary matters.

In any instance where a specific provision of the constitution conflicts with these general grants of power, the specific provision shall apply.

Section 4. Powers of the Board. The Executive Board is the corporation's Board of Directors and has full authority over the affairs of the organization, except for those powers reserved to the Assembly. The Board shall report its activities and the state of the organization's affairs at each regular meeting of the Assembly.

Article II. The General Assembly

Section 1. Eligibility, admission, and rights. Membership is limited to students matriculated into a graduate program in the Price College of Engineering at the University of Utah. An eligible student with a current email address on record is a member so long as they meet at least one of the following conditions:

- a. they are a voting member of a committee or of the Board; or
- b. their attendance has been recorded during at least one of the Assembly's business meetings in that academic year, where the August regular meeting is the first business meeting of an academic year.

Members have the right to participate in the Assembly by attending meetings, making motions, participating in debate, and voting. No member shall be entitled to more than one vote or to vote by proxy.

Section 2. Regular meetings. Regular meetings shall be held in February, May, August, and November, with prior notice to all members of the date, time, and any business requiring notice. Any in-person location shall be announced at least 48 hours in advance.

Section 3. Annual meetings. The regular meeting in November is the annual meeting.

Section 4. Special meetings. Special meetings may be called (a) by the Executive Board, or (b) at the written request of a majority of the directors, a majority of the advisors, or one-tenth of the members. Prior notice shall be given of the date, time, and the purpose of the meeting; business shall be limited to the items specified in the notice. Any in-person location shall be announced at least 48 hours in advance.

Section 5. Quorum, meeting requirement. A quorum of the General Assembly shall require (a) at least seven members present and (b) at least one member present from a simple majority of the academic units entitled to Board representation. The Assembly shall not transact business except at a properly convened meeting where a quorum is present.

Section 6. Manner of meeting. Business meetings are held at a central in-person location, but members

who are not present in person have the right to participate remotely via an internet meeting service that allows for the identification of participants and those seeking recognition. A meeting may be held by internet meeting service alone if ordered by a two-thirds vote of the Board, or by those calling a special meeting.

Article III. The Executive Board

Section 1. Composition, duties. The Executive Board shall be composed of the officers and representatives described in Article IV, collectively classed as directors, and shall have at least five members. Directors shall act in the best interests of the organization, prudently deploy its resources, and observe high standards of ethical conduct. Each director shall attend and participate in meetings of the Board, of the Assembly, and of their assigned committees and shall fulfill the responsibilities required by this constitution and by applicable law. The President shall see that all directors serve on at least one committee.

Section 2. Meetings, quorum. Regular meetings of the Board shall be held monthly at a time fixed by the Board. Special meetings may be called with at least seven days' notice by the President, the President-Elect, or by one-fifth of the directors. A majority of the directors constitutes a quorum.

Section 3. Executive Committee. The Executive Committee shall consist of the President, President-Elect, Treasurer, Recording Secretary, and Corresponding Secretary, with the President as chair. If one person holds multiple such offices, the Board shall appoint directors to ensure the committee has five members. The Executive Committee facilitates the work of the Board by monitoring the progress of organizational goals and committees, evaluating the organization's performance and reporting findings to the Board, and facilitating Board decisions on time-sensitive matters. The Executive Committee has no authority to act for the Board except as explicitly delegated, and shall be governed by all other provisions applicable to the organization's committees.

Article IV. Officers and Representatives

Section 1. Officers. Any student qualified for membership is eligible to hold office. Officers shall faithfully execute all acts of the governing bodies and shall perform the duties prescribed in this constitution, the parliamentary authority, the policies of the organization, and applicable law. The organization's officers are:

- a. a *President*, who is the chief executive of the organization and presiding officer of the governing bodies;
- b. a *President-Elect*, who assists the President in their duties, presides during the President's absence, administers the organization's elections, and shall become President upon vacancy in that office or expiration of the President's term;
- c. a *Treasurer*, who administers Article IX of this constitution and is the financial officer of the organization, custodian of its financial records, and chair of the Finance Committee;
- d. a *Recording Secretary*, who is the recording officer of the governing bodies and custodian of all corporate records;
- e. a *Corresponding Secretary*, who conducts the general correspondence of the organization and issues notices as required by this constitution; and
- f. the *chair of each standing committee*, who leads and oversees the work of their committee.

The corporate officers of the organization are the members of the Executive Committee (see Article III §3).

Section 2. Program representatives. Each academic unit in the Price College of Engineering with a graduate student advisory committee or equivalent body shall be entitled to two representatives on the Board, not counting any officers who may be members of that unit. Any student qualified for membership is eligible to serve as a representative for the academic unit they are a member of, except that a student whose previous end of service is described in Article VII is not eligible for appointment without the prior consent of the Board, which may be granted only by majority ballot vote.

Section 3. Terms and limitations. Officers and representatives serve for terms of one year, with terms beginning January 1. The President-Elect serves one term as such followed by one term as President. No one may serve more than two terms in the same position. No one may hold the office of President or Treasurer at the same time as any other office. Positions are automatically vacated if the individual ceases to qualify.

Article V. Advisors

Section 1. Number, qualification, and terms. The organization shall have two advisors, or more than two as fixed by the Assembly, who are not qualified for membership. Advisors serve staggered two-year terms beginning on January 1 of odd- and even-numbered years. An advisor is limited to three consecutive terms, after which they become eligible for reelection following a break in service of at least one year.

Section 2. Rights and responsibilities. An advisor has the right to attend Assembly and Board meetings and to participate in debate, but may not make motions or vote, and they may be excluded from closed

sessions. An advisor's purpose is to provide guidance to support the organization in fulfilling its mission and to facilitate the continuity of its operations. They facilitate an orderly transition of officers, ensure awareness of available support, and promote adherence to applicable laws and policies.

Section 3. Immediate Past President. In addition to the advisors elected under this article, a President whose end of service is not described in Article VII shall serve as an advisor for a term of one year beginning upon the conclusion of their service as President, unless they decline by writing to the Recording Secretary. This position is not subject to the provisions of Section 1 and is not filled in the event of vacancy. The limitations in Section 2 shall not apply to this advisor if they concurrently hold another position entitled to the associated rights.

Article VI. Elections and Vacancies

Section 1. Selection of program representatives. A unit's graduate student advisory committee or equivalent body may select appointees to fill its representative seats. Appointments for an upcoming term must be delivered to the President-Elect no later than the last day of the month before the annual meeting. Any representative position not filled by such appointment shall be filled by election as provided below.

Section 2. Annual elections. At each annual meeting, the Assembly elects the President-Elect, Treasurer, Recording Secretary, Corresponding Secretary, standing committee chairs, program representative positions not filled under Section 1, and approximately half of the advisors. Those elected serve for terms specified in the corresponding articles.

Section 3. Election proceedings. Anyone eligible for membership can make nominations. Nominations may be submitted in advance to the President-Elect, and shall be accepted from the floor before ballots are cast. Debate on the candidates is in order while nominations are open. Elections are conducted by ballot, with a majority required for election. If no candidate initially receives a majority, balloting for that office shall be repeated until a candidate obtains a majority.

Section 4. Vacancies.

a. *Representatives.* When a program representative position becomes vacant, notice shall be sent to the relevant graduate student advisory committee, which shall have 30 days from the date of notice to appoint a replacement. If an appointment is not made within this period, the vacancy is filled as in (c).

b. *President.* If the office of President becomes vacant, the President-Elect immediately assumes that office for the remainder of the term, whereafter they continue in the office of President for a term of one year. The resulting vacancy carries the title of Vice President, who does not become President at the end of the term but otherwise fulfills the duties of President-Elect; such vacancy is filled as in (c).

c. *Other positions.* A vacancy in other elected positions, including President-Elect, shall be filled by a temporary appointment by the Board until a special election can occur. The membership shall be notified of temporary appointments and a special election held at the first regular meeting for which proper notice can be given or at a special meeting for that purpose.

d. *Emergency appointments.* If at any time there are fewer than the required number of directors, the remaining directors shall, by majority vote, make temporary appointments to fill vacant offices, quorum and occupancy requirements notwithstanding, and shall notify the membership as in (c).

Article VII. Resignation, Removal, and Discipline

Section 1. Resignation. Any individual may resign their position by writing to the Recording Secretary, which is effective upon receipt of the writing unless a later effective date is specified therein.

Section 2. Forfeiture. A director who is absent from three regular meetings of the Board in a 12-month period automatically forfeits their position, and shall be notified that their seat has been declared vacant.

Section 3. Removal. A director or advisor may be removed at the pleasure of the Assembly by a two-thirds vote. Such removal may not take effect until a statement explaining the reasons for the removal has also been adopted by majority vote.

Section 4. Suspension. A director or advisor may be suspended by a two-thirds vote of the Board. The membership must be notified of the suspension, its basis, and any temporary appointment within 24 hours or the suspension is void. Following suspension, the Assembly resolves the question of removal as described in Section 3. If the Assembly fails to remove the suspended individual, their position is reinstated.

Section 5. Discipline. Any individual serving in the organization may be disciplined for conduct tending to injure the good name of the organization, disturb its well-being, or hamper it in its work. The Board shall oversee disciplinary proceedings, following the procedures in the parliamentary authority. The Board's findings may be appealed to the Assembly. Restitution shall be required in instances of financial misconduct.

Article VIII. Committees

Section 1. Membership. Committee membership is open to all, regardless of membership status. A committee's chair is a voting member of that committee; the President appoints the other voting members subject to the oversight of the Executive Board, which may establish related requirements and modify committee membership. Non-voting volunteers may be included on a committee unless directed otherwise.

Section 2. President's ex officio membership. The president is ex officio a voting member of all committees except any nominating or disciplinary committees. When operating in this capacity, the President has the right, but not the duty, to participate in the work of the committee, and is not counted in determining the number required for a quorum or whether a quorum is present at a meeting.

Section 3. Meetings, quorum. A committee meets at the request of its chair or one-third of its members and shall meet at least once between each regular meeting of the Assembly. A majority of the committee's voting membership constitutes a quorum.

Section 4. Administrative committees. The following standing committees are established to support the general operations of the organization and shall report to the Board:

- a. The *Finance Committee* oversees responsible use of funds and assists the Treasurer in their duties;
- b. The *Governance Committee* manages the organization's governing documents and policies and promotes ethical and effective governance; and
- c. The *Development Committee* manages and conducts the organization's fundraising efforts.

All business related to the purpose of an administrative committee, wherever originating, shall be referred to it, though this rule may be suspended for a specific matter by a two-thirds vote.

Section 5. Other committees. The Assembly has the sole power to establish additional standing committees. The chair of a new standing committee is selected by the Assembly at the time it is established and is subsequently elected at each annual meeting. Either governing body may appoint special committees which dissolve when their assignment is complete, and that body shall name the committee's chair.

Article IX. Finances

Section 1. Fiscal Year. The organization shall use the calendar year as its fiscal year.

Section 2. Financial Control Policy. All financial activities shall be conducted in accordance with applicable legal and ethical standards. The Board shall adopt a Financial Control Policy for the management of the organization's financial resources, and no funds shall disburse from the treasury except in accordance with this policy. The Board shall retain discretionary authority over all disbursements to ensure each expenditure is consistent with the purpose of its appropriation and with the organization's exempt purpose.

Section 3. General budget. The annual general budget process shall be as follows: The Board shall first adopt revenue projections for the upcoming fiscal year. The Finance Committee shall then draft the general appropriations, not exceeding projected revenue, which shall be approved by the Board. The budget shall then be adopted by the Assembly before the start of the fiscal year; the Assembly may amend appropriations but may not alter the Board's revenue projections. Appropriations shall expire at the fiscal year's end; unexpended funds shall return to the general treasury unless otherwise specified.

Section 4. Functional budgets. No payments shall be made under an appropriation until a detailed functional budget, prepared by the responsible officer or committee and recommended by the Finance Committee, has been approved by the Executive Board.

Section 5. Amendments. Any budget may be amended by a two-thirds vote of the relevant governing body, or by a majority vote of that body if the amendment is recommended by the Finance Committee.

Section 6. Contingency Funds. The Executive Board may, by majority vote, authorize expenditures from funds appropriated for contingency purposes to cover unforeseen costs for budgeted programs and operations.

Section 7. Financial Reporting. The Treasurer shall present a quarterly financial report at each regular Assembly meeting and an annual report at the first regular Assembly meeting after the close of the fiscal year.

Section 8. Compensation. No advisor or voting member of any body shall receive compensation for their service as such, but may be reimbursed for approved expenses in accordance with the Financial Control Policy. Any amendment authorizing compensation for such service shall also establish standards for determining reasonable compensation consistent with nonprofit best practices.

Article X. Rules, Policies, and Procedures

Section 1. Rules of order. The rules contained in the current edition of *Robert's Rules of Order Newly Revised* shall govern the organization in all cases to which they are applicable and in which they are not inconsistent with this constitution and any special rules of order the organization may adopt.

Section 2. Board and committee rules. The following provisions apply to the transaction of business by the Board and by committees:

- a. These bodies may adopt such procedural rules as they deem necessary to conduct their business, so long as those rules do not conflict with this constitution or any other acts of the organization;
- b. These bodies may conduct meetings virtually or in-person, as they may determine; and
- c. These bodies may take action without meeting in accordance with procedures the Board shall establish.

Section 3. Handbook. The Governance Committee shall maintain a handbook that includes the organization's constitution, special rules of order, and policies; information on required disclosures and ongoing compliance; the responsibilities of each standing committee; and other information that may assist in the perpetual operation of the organization.

Section 4. Conflict of interest. The Board shall adopt procedures for identifying, disclosing, and managing conflicts of interest in accordance with applicable legal and ethical standards. An individual with voting power in any body shall abstain from voting on matters in which they have a direct personal or financial interest not common to the membership as a whole.

Section 5. Whistleblower protections. The organization shall not retaliate against any individual who in good faith has reported a possible violation of law or policy, or who has sought advice on how to report such a violation. The Board shall adopt a formal whistleblower policy that establishes procedures for receiving and resolving reports and protecting the confidentiality of reporters.

Section 6. Recordkeeping. The organization shall keep accurate and complete books and records of account and shall also keep minutes of the proceedings of its governing bodies and committees. The Board shall adopt a document retention policy that provides for the systematic review, retention, and destruction of documents received or created by the organization in connection with its business.

Section 7. Notice and writings. Required notices and writings shall be sent by electronic mail to a member's email address of record. If no time is specified, notice shall be sent at least 14 days in advance.

Section 8. Ballot voting. A ballot vote may be conducted electronically so long as members can vote for any eligible candidate or choice, even if not on the ballot, without revealing how they voted.

Article XI. Indemnification

The organization shall indemnify any director, officer, or other agent to the fullest extent authorized by law against expenses incurred in connection with any legal proceeding to which they are a party because of their service to the organization. However, this indemnification shall not extend to any matter in which the individual is adjudged liable for gross negligence, willful misconduct, or a breach of the duty of loyalty to the organization. The organization may advance legal expenses and maintain liability insurance on behalf of such persons. The Board shall have full power and authority to execute this article.

Article XII. Amendment

Section 1. General Amendments

a. Any two members may propose an amendment to this constitution, which shall be referred to the Governance Committee. The Governance Committee shall present its report on the amendment and any recommendation to the Assembly at a regular meeting within six months of the referral. The Governance Committee may also originate amendments of its own accord, reporting them in the same manner.

b. After the Governance Committee has presented its report, the constitution may be amended only by a two-thirds vote of the Assembly with prior notice. If the Governance Committee fails to report on a proposed amendment within the required time, the Assembly may, by majority vote, take up the amendment for consideration and action; its final adoption shall require the ordinary two-thirds vote with prior notice.

Section 2. Affiliation addenda. Affiliations with external organizations shall be regulated through addenda to this constitution, which may be adopted and amended by majority vote of the Assembly with prior notice. Such addenda shall be limited to regulations closely related to the affiliation. In the event of conflict between an addendum and a provision of this constitution, this constitution shall prevail; addenda are otherwise incorporated into and made part of this constitution.

EGSC Constitution: Recognized Student Organization Addenda

The following are adopted and incorporated into the corresponding sections of the Constitution of the Engineering Graduate Student Council at the University of Utah, and are part of the constitution for so long as the organization maintains status as a recognized student organization (RSO) at the University of Utah:

Addendum RSO-1. Membership

This organization shall not discriminate on the basis of race, color, religion, national origin, sex, sexual orientation, gender identity/expression, age, or status as an individual with disability, or as a protected veteran, and any other status protected by applicable state or federal law. (University of Utah, Policy 6-400, Section II-E). This organization agrees to keep its membership primarily to currently enrolled students at the University of Utah. Faculty, staff, and community members may participate in the organization, but club leadership must consist of all currently enrolled students at the university.

Addendum RSO-2. Officers

Upon transfer of leadership, this organization agrees to complete all necessary procedures indicating change of leadership on Campus Connect within a minimum of 60 days of the transferral. The officers of the organization shall be responsible for ensuring that all activities required to maintain RSO status are completed.

Addendum RSO-3. Resignation, Removal, and Discipline

A. Removal of Directors. This organization agrees to provide a clear statement including the reasons for, and adhere to the following procedure upon, the removal of an officer: The organization's directors may be removed only by two-thirds vote of the Assembly following the procedures in Article VII.

B. Removal of Advisors. This organization agrees to provide a clear statement including the reasons for, and adhere to the following procedure upon, the removal of an advisor: The organization's advisors may be removed only by two-thirds vote of the Assembly following the procedures in Article VII.

Addendum RSO-4. Finances

This organization agrees to practice fiscal responsibility and manage club funds in ways that are ethical, transparent, and compliant with state and federal law as well as University policy, where applicable.

Addendum RSO-5. Amendments

This organization agrees to submit their constitution for approval by the department of Student Leadership & Involvement as part of the annual re-registration process. For the purposes of this clause, the organization agrees to submit its constitution and all associated addenda to the office of Student Leadership and Involvement.

Provisos Relating to Transition

These provisos provide for the organization's transition from an unincorporated society to a nonprofit corporation regulated by the foregoing Constitution.

Superseding terms. The following shall supersede any conflicting terms in the constitution through December 31, 2025, after which the provisions in the constitution shall take full force and effect:

- a. The officers of the organization shall be a Chair, who performs the duties of President; a Secretary, who performs the duties of Recording Secretary and Corresponding Secretary; a Treasurer; and the chairs of each standing committee.
- b. The Executive Committee shall consist of the Chair, the Treasurer, the Recording Secretary, the Corresponding Secretary, and the Governance Chair.
- c. Elections at the November 2025 annual meeting shall include the election of a President in addition to the ordinary positions elected at the annual meeting.
- d. The Executive Board shall have full power and authority over appropriations and budgeting for the remainder of the 2025 fiscal year.

Ordinary acts. The following are to be considered ordinary acts of the relevant governing body:

- a. All special rules of order and standing rules established prior to incorporation are rescinded.
- b. In addition to the committees enumerated in the constitution, the initial standing committees of the organization shall include a Student Success Committee and a Coordinating Committee.
- c. The following individuals have been elected to serve as the officers of the organization for the terms expiring December 31, 2025:

Samuel Adams, Chair	Soham Bagchi, Recording Secretary
Helen Salako, Treasurer	Ajay Anand, Governance Chair
Soham Bagchi, Development Chair	Alex Trevino, Student Success Chair
Aidan Belanger, Coordinating Chair	
- d. The academic units and their initial program representatives, for the term expiring December 31, 2025:

Samuel Adams, Biomedical Engineering
Alex Trevino and Kallie Case, Chemical Engineering
Helen Salako and Jeremiah Adejube, Civil and Environmental Engineering
Aidan Belanger and Yawen Xue, Materials Science and Engineering
Livia Correa and Ajay Anand, Mechanical Engineering
Soham Bagchi, Kahlert School of Computing
- e. The initial advisors and their terms:

Professor Taylor Sparks, whose term expires December 31, 2025
Abby Harris, whose term expires December 31, 2026
- f. All graduate student advisory committee (GSAC) members of record shall be invited to regular Assembly meetings, with the responsibility of submitting the record of members to be upon the respective GSACs.
- g. Nominations for program representatives shall be solicited from the relevant graduate student advisory committees by the first day of the month before the annual meeting.
- h. The standard order of business for regular meetings of the Assembly shall be: (1) Approval of minutes; (2) Resolution of the date and time for the next regular meeting; (3) Reports of officers, advisors, and committees; (4) Special orders, which shall include any elections; (5) Unfinished business, general orders; (6) New business; (7) Open forum. The Board may schedule non-business items at any point after *New Business*.
- i. When speaking in debate while a motion is pending in the Assembly, a member shall not speak for more than five minutes at a time unless they obtain the consent of the Assembly. Speeches during open forum shall be limited to three minutes.